



Senate

General Assembly

File No. 131

February Session, 2026

Substitute Senate Bill No. 384

Senate, March 23, 2026

The Committee on Government Administration and Elections reported through SEN. FLEXER of the 29th Dist., Chairperson of the Committee on the part of the Senate, that the substitute bill ought to pass.

AN ACT REDEFINING "EXECUTIVE BRANCH AGENCY" FOR PURPOSES OF DATA GOVERNANCE.

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Section 4-67o of the general statutes is repealed and the
2 following is substituted in lieu thereof (*Effective July 1, 2026*):

3 As used in this section and sections 2-79e, 4-67p and 4-67z:

4 (1) "Data" means the final version of statistical or factual information
5 that: (A) Is reflected in a list, table, graph, chart or other non-narrative
6 form that can be digitally or nondigitally transmitted or processed; (B)
7 is regularly created or maintained by, or on behalf of, an executive
8 branch agency; and (C) records a measurement, transaction or
9 determination related to the mission of the agency or is provided to the
10 agency by third parties pursuant to law.

11 (2) "Executive branch agency" means any state agency, [listed in
12 section 4-38c, except the Board of Regents for Higher Education] as

13 defined in section 4d-1, except the constituent units of the state system
14 of higher education and the offices of the Secretary of the State,
15 Comptroller, Attorney General and Treasurer.

16 (3) "High value data" means any data that the department head
17 determines (A) is critical to the operation of an executive branch agency;
18 (B) can increase executive branch agency accountability and
19 responsiveness; (C) can improve public knowledge of the executive
20 branch agency and its operations; (D) can further the core mission of the
21 executive branch agency; (E) can create economic opportunity; (F) is
22 frequently requested by the public; (G) responds to a need and demand
23 as identified by the agency through public consultation; or (H) is used
24 to satisfy any legislative or other reporting requirements.

25 (4) "Open data" means any data that (A) is freely available in
26 convenient and modifiable format and can be retrieved, downloaded,
27 indexed and searched; (B) is formatted in a manner that allows for
28 automated machine processing; (C) does not have restrictions
29 governing use; (D) is published with the finest possible level of detail
30 that is practicable and permitted by law; and (E) is described in enough
31 detail so users of the data have sufficient information to understand (i)
32 the strengths, weaknesses, analytical limitations and security
33 requirements of the data, and (ii) how to process such data.

34 (5) "Public data" means any data collected by an executive branch
35 agency that is permitted to be made available to the public, consistent
36 with any and all applicable laws, rules, regulations, ordinances,
37 resolutions, policies or other restrictions, requirements or rights
38 associated with the data, including, but not limited to, contractual or
39 other legal restrictions, orders or requirements.

40 (6) "Protected data" means any data the public disclosure of which
41 would (A) violate federal or state laws or regulations; (B) endanger the
42 public health, safety or welfare; (C) hinder the operation of the federal,
43 state or municipal government, including criminal and civil
44 investigations; or (D) impose an undue financial, operational or
45 administrative burden on the executive branch agency. "Protected data"

46 includes any records not required to be disclosed pursuant to subsection
47 (b) of section 1-210.

This act shall take effect as follows and shall amend the following sections:		
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Section 1	<i>July 1, 2026</i>	4-67o
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Statement of Legislative Commissioners:

The title was changed.

GAE *Joint Favorable Subst. -LCO*

The following Fiscal Impact Statement and Bill Analysis are prepared for the benefit of the members of the General Assembly, solely for purposes of information, summarization and explanation and do not represent the intent of the General Assembly or either chamber thereof for any purpose. In general, fiscal impacts are based upon a variety of informational sources, including the analyst's professional knowledge. Whenever applicable, agency data is consulted as part of the analysis, however final products do not necessarily reflect an assessment from any specific department.

OFA Fiscal Note

State Impact: None

Municipal Impact: None

Explanation

The bill makes various changes to the law governing executive branch data sharing and management. These changes have no fiscal impact as it is not anticipated that any additional resources will be required to implement these changes.

The Out Years

State Impact: None

Municipal Impact: None

OLR Bill Analysis**sSB 384*****AN ACT REDEFINING "EXECUTIVE BRANCH AGENCY" FOR PURPOSES OF DATA GOVERNANCE.*****SUMMARY**

This bill broadens the definition of “executive branch agency” and clarifies carve-outs within the definition, which impact executive branch data sharing and management. The law generally authorizes the state’s chief data officer (CDO) to direct executive branch agencies on data use, management, sharing, coordination, and formulation of the state data plan, and requires them to meet certain related requirements.

Under current law, the “executive branch agencies” subject to these provisions are 24 of the 25 statutorily defined executive branch departments (excluding the Board of Regents for Higher Education).

The bill extends these provisions to cover (1) each department, board, council, commission, institution, or other Executive Department agency (with any entity included by law within a given department deemed a division of that department); (2) two of the six offices of the constitutional officers (the offices of governor and lieutenant governor); and (3) all executive department agency operations funded by the General Fund or a special fund. It excludes constituent units of the state higher education system (UConn and the Connecticut State Colleges and Universities, which includes the Connecticut State University System, Connecticut State Community College, and Charter Oak State College).

The bill generally requires a newly covered agency to:

1. designate an employee as its agency data officer,
2. consult with the CDO on the state data plan,

3. take information technology-related actions and initiatives consistent with the state data plan,
4. conduct an annual inventory of its high value data, and
5. develop an open data access plan.

The bill also subjects the newly covered agencies to a CDO review, in consultation with the attorney general and their own legal counsel, on the legal obstacles to sharing their high value data. By law, “high value data” is data that the department head determines:

1. is critical to an executive branch agency’s operation;
2. can (a) increase executive branch agency accountability and responsiveness, (b) improve public knowledge about the agency and its operations, (c) further the agency’s core mission, or (d) create economic opportunity;
3. is frequently requested by the public;
4. responds to a need and demand as identified by the agency through public consultation; or
5. is used to satisfy any legislative or other reporting requirements.

EFFECTIVE DATE: July 1, 2026

COMMITTEE ACTION

Government Administration and Elections Committee

Joint Favorable

Yea 19 Nay 0 (03/11/2026)